

CITATION: McLeod v. Wu et al., 2025 ONSC 6944

COURT FILE NO.: CV-20-28783

DATE: 20251211

ONTARIO

SUPERIOR COURT OF JUSTICE

BETWEEN:

Carol McLeod

Plaintiff

Steven D. Bezaire, for the Plaintiff

– and –

Yuping Wu, Helen Cai, and Dylan Cai

Defendants

Yuping Wu, Helen Cai, and Dylan Cai,
represented at trial by Alan Cai

HEARD: May 28, 2025

REASONS FOR JUDGMENT

HORVAT J.

OVERVIEW

- [1] The plaintiff, Carol McLeod, seeks damages for a slip and fall that occurred on an outdoor staircase at the home her daughter was renting. Among other injuries, Carol fractured her elbow in the fall. The defendant, Yuping Wu, was Carol's daughter's landlord and owner of the property.
- [2] There is no dispute that Yuping owed a duty of care to Carol. The defendants argued that they did not breach their standard of care, and that Carol did not suffer any damages because of the fall. They also mounted a third-party claim against their tenant, Carol's daughter Melanie, arguing she had exclusive possession of the property and therefore she held a duty of care. Lastly, Yuping conveyed her family home to her children after being served the statement of claim for this action in what may have been a fraudulent conveyance.

- [3] The issues before me are:
1. Did the defendants breach their standard of care that led to Carol suffering harm and damages?
 2. Did Melanie have a duty of care in respect to the maintenance and upkeep of the property?
 3. Was the conveyance of the family home, from the defendant Yuping to her children, fraudulent?
- [4] I find that Yuping did not meet her standard of care with respect to the upkeep of the staircase given that there was no system of inspection, monitoring, or maintenance of the staircase in place. I disagree with the defendants on damages and find that Carol did suffer compensable damages because of the fall on the staircase.
- [5] The defendants are ordered to pay to Carol \$85,000 in non-pecuniary general damages, \$7,300 for housekeeping and home maintenance, \$1,689.93 for past physiotherapy care, \$4,050 for future care, and \$1,524.64 for an OHIP subrogated claim. Carol is also entitled to pre and post judgment interest, and her costs for fees in the amount of \$50,000, exclusive of H.S.T., and for disbursements in the amount of \$22,210.78.
- [6] I find that as a tenant, Melanie did not have a duty of care in respect to the Property, therefore the defendants' third-party claim against her is dismissed.
- [7] I find the conveyance of the family home from Yuping to her children to be fraudulent. I order a declaration that the registration of that conveyance be void.

FACTUAL BACKGROUND

The fall

- [8] On October 22, 2019, Carol visited her daughter's home located at 426 Bruce Avenue in Windsor, Ontario (the "Property") on her way home from work. Carol's daughter, Melanie McLeod, rented the Property from the defendant, Yuping Wu, and lived there with her three children.
- [9] Carol visited her daughter and grandchildren at their home almost daily as it was a short walk from her own apartment and near the downtown Windsor bus depot. Carol does not drive and relies on the bus or walks to get around the city. On the day of her fall, Carol finished her shift at Costco at 8:15 p.m. She then took the bus to the downtown Windsor bus depot and walked to the Property where she arrived at approximately 9:00 p.m. She entered the Property through the front door and visited with two of her granddaughters for approximately twenty minutes. Carol exited the home out the back door as she had always done. The roads and sidewalks were dry that evening and it was not raining.

- [10] As Carol walked down the staircase, she held the handrail on the right-hand side. It was dark outside and there was no lighting around the staircase. She had nothing in her hands. She was wearing running shoes with a decent tread, slacks, and a winter coat. Carol's left foot became caught in a crack or a space on the second to last step. It is unclear whether the stair was displaced that evening by Carol's foot or whether it had been displaced prior to Carol using the stairs.
- [11] The momentum of her left foot becoming caught in the stair caused her body to pitch forward, strike the brick wall on the left-hand side, and fall to the concrete walkway. Carol landed on her left side, including on her elbow, knee, and flank. Carol was embarrassed by her fall and did not alert anyone in the house. She got up, saw no one was around, and walked slowly to the bus stop. Unfortunately, she missed her bus and ended up walking home.
- [12] Carol went to work the next day and found that the pain in her left arm worsened throughout the day. The pain continued to worsen in the following days, and she eventually attended at the emergency room on October 31, 2019. Carol did not miss any work because of the injuries from the fall.
- [13] On October 25, 2019, three days after her fall, Carol attended the Property to take a photograph of the back staircase. The second to last stair remained displaced.
- [14] On November 29, 2019, Melanie moved out of the Property. Carol attended the Property that day and took another photograph. The second last stair continued to be displaced and unrepaired.

The property and staircase

- [15] Yuping purchased the Property in 2014. According to Yuping's evidence, her husband performed several touch-ups and improvements to the Property shortly after the purchase, including replacing the old materials on the back staircase with new wood. Mr. Wu is not an engineer or a certified carpenter, and he did not give evidence at trial. No other evidence in support of the repairs was adduced at trial. There were no inspections done of the Property by Yuping either prior to or after 2014.
- [16] There was some evidence from the defendants that there was an inspection of the Property by the City of Windsor a few months prior to Carol's fall. While the inspector was identified, he was not called as a witness by the defendants. No other information related to the inspection was before me.
- [17] Melanie began renting the Property from Yuping on April 1, 2017. There are two entrances to Melanie's unit: a door and a staircase at the front of the Property and a door and a staircase at the back of the Property. The staircase at the back of the home where Carol exited is five stairs high, not counting the landing. It was constructed of what appeared to be wood. As one descends the staircase, there is a wooden handrail on the right-hand side and a brick wall on the left with no handrail. The staircase was dark, with no lighting to

illuminate it. The light fixture above the staircase was missing and had been plated over for the entire time Melanie lived at the Property.

- [18] Melanie and her daughters almost always used the front entrance for personal safety reasons. The rear yard was overgrown, and the back exit led to an alley where there were often homeless or aimless people wandering around. They also did not regularly use the back staircase because it was very dark. Melanie complained to Yuping and Yuping's husband on multiple occasions about the lack of lighting over the back entrance prior to Carol's fall. At no time prior to Carol's fall did Melanie see that the stair was displaced or broken like it was after Carol's fall.
- [19] Both the defendants and Melanie agreed that Melanie's tenancy at the Property began well, however, the relationship between the parties deteriorated and became tense. While not specifically related to the staircase, there was a dispute between Melanie and Yuping over an order to repair. This led to Yuping obtaining an order from the Landlord and Tenant Board requiring Melanie and her daughters to move out at the end of November 2019.

Expert opinion of Christopher Guignon

- [20] Carol adduced the evidence of Christopher Guignon, who was qualified as an expert. Mr. Guignon has been a duly qualified Registered Professional Engineer in the Province of Ontario since 2011 and employed by Chall.Eng Corporation since 2009. He obtained a master's degree in engineering from the University of Windsor in 2013. He has investigated, or assisted in the investigation of, more than 2,100 assignments involving building defects, building failures/damages, disasters, building service problems, specialty structures, liability cases, and product defects.
- [21] On October 27, 2021, Mr. Guignon attended the Property to conduct an inspection of the back staircase and porch. Yuping, her husband, and her son, the defendant Alan Wu, were all present. During the inspection, Mr. Wu jumped up and down on the staircase to demonstrate its strength. Mr. Guignon observed that certain maintenance work had recently been completed on the staircase, including that the stair stringers were painted or stained earlier in the day prior to his inspection with the paint/stain still being wet during the inspection. In comparing the photographs taken by Carol following her fall, and inspecting the stairs on this date, Mr. Guignon observed other modifications or repairs that had been made to the staircase to provide additional strength to resist the subject stair from moving or shifting when walked upon.
- [22] In his written report dated June 17, 2022, and in his evidence at trial, Mr. Guignon summarized his opinion as follows:

In summary, it is our professional opinion that the above noted deficiencies, notably the inadequate structural stability of the stair tread due to the lack of fasteners, were the result of improper construction and maintenance of the stairs that created a safety hazard which could be considered relevant to the fall accident that occurred while Ms. McLeod was walking down the rear staircase at this building.

In addition, it is our professional opinion that the presence of these deficiencies did not comply with the City of Windsor Property Standards By-Law requirements that a property, be maintained in a structurally sound condition, free of defects which may constitute a possible safety hazard.

- [23] The defendants did not adduce an engineering expert.

Carol's Injuries and Treatment

- [24] Carol was 67 years old at the time of her fall. Prior to the fall, she was generally in good health. She did not smoke, drink alcohol, or use drugs apart from prescription medication including Lipitor for high cholesterol. In 2010, Carol had an arthroscopy procedure on her left knee, and carpal tunnel surgeries in 1990 (left side) and 2005 (right side). Prior to and at the time of her fall, Carol was completely mobile, independent, and pain-free, and there is no evidence to suggest otherwise.
- [25] For a few days following the fall, Carol iced her elbow. On October 31, 2019, she attended the Emergency Department of the Ouellette Campus of the Windsor Regional Hospital. An x-ray determined that she suffered a fracture of her left elbow. The orthopaedic surgeon who treated her prescribed a sling and advised her to keep from using her arm for 8-10 weeks. He saw her again on November 19, 2019, and recommended physiotherapy.
- [26] Carol used an old shoulder brace and adapted it for use as an over-the-shoulder sling to keep her left arm immobilized. She attended eleven physiotherapy appointments in February and March 2022 at the Care Institute-Solaris Rehabilitation in Windsor ("Care Institute") and then was discharged with instructions for self-care and stretching at home. Carol could not afford to pay out of pocket for physiotherapy. As a result, the Care Institute agreed to provide her with physiotherapy care in exchange for a direction that the Care Institute be repaid as a first charge against any damages that Carol receives from this action. As of January 30, 2025, the amount owed to the Care Institute for Carol's physiotherapy is \$1,100.00 and \$589.93 in interest.
- [27] Despite the physiotherapy care, Carol continues to experience soreness and weakness in her left arm. Carol is left-handed and she has difficulty using it to lift heavier items, grabbing things that require a grip, and handling items with her left arm extended. She cannot lean on her left elbow against anything hard and it is sometimes uncomfortable enough at night that it awakens her. When doing repetitive movements or hyperflexion of the elbow with direct pressure placed on it, she experiences numbness and pain in her left hand and elbow. Carol was clear in her evidence that her injury does not prevent her from doing tasks, however, it has made her pace herself and handle more difficult tasks slowly and differently than she had in the past.
- [28] Carol is no longer working because of an unrelated issue with her knee.

Expert Opinion of Dr. Jasey

- [29] Carol adduced the evidence of Dr. Gregory Jasey, who was qualified as a medical expert. Dr. Jasey received his specialty designation for Orthopaedic Surgery on June 30, 2000, and is a Fellow in the Royal College of Physicians and Surgeons of Canada. His area of surgical expertise includes sports medicine and ligament reconstruction, as well as a sub-specialty in complex trauma and fracture reconstruction.
- [30] Dr. Jasey met with Carol for an independent medical evaluation on December 5, 2022. He examined and assessed her injuries, though there was no formal physician-patient relationship between Dr. Jasey and Carol. The examination lasted approximately 120 minutes. He also reviewed her medical records and documents related to this action. Dr. Jasey prepared a report in his capacity as a certified orthopaedic consultant and surgeon, and as an orthopaedic trauma subspecialist. His written report, dated December 24, 2022, makes the following findings, among others:
- (a) Carol sustained the following injuries resulting from the fall: (a) left elbow radial head fracture; (b) left elbow contusion and ulnar nerve subluxation; (c) secondary post traumatic ulnar neuropathy left upper extremity (cubital tunnel syndrome); and (d) mild elbow contracture.
 - (b) The cause of Carol's ongoing post traumatic ulnar neuropathy is wholly attributed to the injuries she sustained in the fall.
 - (c) Carol's ongoing impairment includes: (i) diminished range of motion in her left elbow; (ii) ulnar nerve instability; (iii) mild hypothenar muscle atrophy in her left hand; (iv) diminished grip strength in her left upper extremity; and (v) diminished strength/endurance in her left upper extremity.
 - (d) Carol has physical findings consistent with ulnar neuropathy affecting her hand with subjective reports consistent with post traumatic ulnar neuropathy.
- [31] According to Dr. Jasey, Carol is at risk for developing post traumatic arthritis and worsening of her ulnar neuropathy. He was not optimistic that Carol would improve much further if at all. Dr. Jasey recommended that Carol resume physical therapy. Carol cannot afford to pay out of pocket for physiotherapy. Her evidence was clear that she would like to resume physical therapy and try to gain further relief from her injury. Dr. Jasey also recommended that Carol obtain a support brace and some splints to wear at night. She cannot afford to pay out of pocket for these items either.
- [32] Dr. Jasey recommended ulnar nerve transposition surgery for Carol. The surgery would require an outpatient surgical procedure, followed by a period of immobilization of up to six weeks and a course of physiotherapy between three and six months.
- [33] Dr. Jasey also met with and examined Carol on February 20, 2025, and prepared an updated report dated March 16, 2025. He summarized Carol's current complaints regarding her left elbow as follows:

Ms. Mcleod reports that she continues to suffer from pain in the left elbow which she states is really unchanged. She ranks the pain 6/10. She describes a constant ache and numbness affecting the 4th and 5th digits of the hand. She is tender as well over the olecranon and radial aspect of the elbow.

She finds aggravating factors include leaning on her elbow which causes radiation of pain to the hand with tingling in the 4th and 5th digits. Heavy pushing and pulling also aggravate the elbow, as well as lifting items that weigh more than 20lbs. She has difficulty with grip strength, as well as getting dressed and undressed. Washing her hair and brushing her hair can also be aggravating. Repetitive movements are also aggravating for the elbow.

Relieving factors for her elbow include activity avoidance. She has a brace that she originally bought for her knee but she uses on her elbow that can help alleviate symptoms. She reports that her brace has both heat and massage and she tends to use it for 15 minutes at a time. Acetaminophen preparations (over the counter) also provide some relief of her symptoms. She does not use nonsteroid anti-inflammatories. She finds a heating pad also helpful.

She has not noticed any overall significant change in her left elbow condition over the past 2 years.

[34] During her evidence, Carol confirmed that Dr. Jasey’s summary remained accurate. With respect to Carol’s prognosis, Dr. Jasey concluded in his 2025 written report that Carol’s prognosis remains guarded and that she has a risk for developing post traumatic arthritis in her left elbow. He also noted a “slight worsening of her ulnar neuropathy with hypothenar muscle wasting and decreased strength.” Dr. Jasey concluded that Carol “does indeed suffer from post traumatic elbow pain, post traumatic ulnar neuropathy, diminished strength and endurance of the left upper extremity and possibly now post traumatic arthritis.” He recommended that Carol undergo physiotherapy, use an elbow pad support brace, splint the elbow at night, and obtain a neurosurgical consultation for possible ulnar neuropathy surgery.

[35] Dr. Jasey testified that it will likely be necessary for Carol to undergo the surgical procedure to prevent “further deterioration of the ulnar neuropathy condition.”

[36] The defendants did not adduce a medical expert.

Carol’s Limitations and Restrictions

[37] Dr. Jasey recommended that Carol avoid the following:

- (a) Pressure on cubital tunnel and medial elbow.
- (b) Resting her elbow on hard surfaces.

- (c) Heavy lifting, pushing, pulling, and carrying with the left upper extremity greater than 15 lbs.
- (d) Repetitive elbow flexion and extension movements with the left upper extremity.
- (e) Tasks that require sustained or repetitive gripping with the left upper extremity.

[38] Carol confirmed that when she partakes in any of these activities, her symptoms are triggered or exacerbated. This includes picking up, holding, and playing with her young great-grandchildren which she is largely unable to do.

Housekeeping and Home Maintenance

[39] Carol is left-handed and her injury impacted her dexterity and strength in this dominant hand. For months after her fall, Carol's daughter and granddaughters attended her apartment and assisted her with dishes, cleaning, laundry, and dusting. Her daughter and granddaughters continue to insist on assisting Carol with work around her apartment when they visit her. Carol did not and does not pay them for their assistance, and they did not assist her with the expectation of being paid. Carol would prefer to have a regular visit of socializing with her daughter and granddaughters and have paid assistance for housekeeping. At a minimum, she requires assistance to deal with the heavier housekeeping tasks of scrubbing sinks, the tub, and the toilet, and periodic thorough washing of her windows and floors.

[40] Carol was of the belief that \$100 every two weeks would allow her to find assistance with the heavier tasks around her apartment.

The Conveyance of the Family Home

[41] Shortly after being served with the statement of claim in this action, Yuping and her husband met with a lawyer who they trusted. Yuping's evidence at trial, confirmed by the defendants Helen Cai and Dylan Cai, was that this lawyer convinced Yuping and her husband to transfer their family home to their youngest children, Helen and Dylan. They relied on her advice.

[42] By Yuping's own admission, she made an "illegal" transfer with a pending lawsuit. The only reason that Helen and Dylan were added as parties to this action is because of the transfer of the family home into their names.

ANALYSIS

Issue 1: Did the defendants breach their standard of care that led to Carol suffering harm and damages?

[43] For Carol to be successful in this action, she must prove, on a balance of probabilities, that Yuping owed her a duty of care, Yuping breached the standard of care, she suffered compensable damage or harm, and causation: *Case v. Pattison*, 2023 ONCA 529, 168 O.R.

(3d) 426, at para. 10, leave to appeal ref'd 2024 CanLII 30095 (SCC); *Cooper v. Hobart*, 2001 SCC 79, [2001] 3 S.C.R. 537, at paras. 30-39; *Mustapha v. Culligan of Canada Ltd.*, 2008 SCC 27, [2008] 2 S.C.R. 114, at para. 3; *Hill v. Hamilton-Wentworth Regional Police Services Board*, 2007 SCC 41, [2007] 3 S.C.R. 129, at para. 96.

Duty and standard of care

- [44] Yuping is an occupier and had a duty of care to Carol pursuant to ss. 3 and 8 of the *Occupiers' Liability Act*, R.S.O. 1990, c. O.2. Her duty included a requirement "to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises, and the property brought on the premises by those persons are reasonably safe while on the premises": *Waldick v. Malcolm*, [1991] 2 S.C.R. 456, 3 O.R. (3d) 471. There is a statutory duty imposed on landlords of residential properties to maintain and repair premises. This duty prevails, despite any agreement or waiver to the contrary: *Taylor v. Allard*, 2010 ONCA 596, 325 D.L.R. (4th) 761, at paras. 23-25.
- [45] Yuping understood that one of her responsibilities as a landlord was to ensure that the Property was safe. She acknowledged that as the landlord, she was responsible for the maintenance and repair of the Property. In her evidence, however, she was clear that her husband took care of all repairs and maintenance of the Property. Mr. Wu was not adduced as a witness at trial. Yuping had no knowledge of any of the details of what steps her husband took, if any, with respect to the back staircase. The lack of any evidence of regular inspection, maintenance, or monitoring of the back staircase was insufficient and wholly unreasonable by Yuping as the landlord.
- [46] In my view, Yuping failed to take such reasonable care to ensure that the Property, including the back staircase, was reasonably safe. That no lighting was installed on the back porch and staircase is sufficient to ground a breach of the standard of care against Yuping. Adequate lighting of a staircase is reasonable in any circumstance. Yuping acknowledged that if there was a light fixture then she would be responsible for changing the lightbulb. There was a clear obligation on Yuping to provide lighting in the back even if Melanie did not request or demand it.
- [47] The expert evidence of Mr. Guignon further supports the finding that Yuping breached the requisite standard of care: "the inadequate structural stability of the stair tread due to the lack of fasteners, were the result of improper construction and maintenance of the stairs that created a safety hazard." Mr. Guignon also found that the deficiencies identified in his report "did not comply with the City of Windsor Property Standards By-Law requirements that a property, be maintained in a structurally sound condition, free of defects which may constitute a possible safety hazard."

Damages

- [48] The only injury that Carol attributes to the fall is that to her left elbow. Her evidence was consistent throughout. Carol returned to work following the fall. She was forthright about the tasks she could do, and those that she found difficult or caused her discomfort. There

was not a hint of exaggeration of her injuries or the state of the staircase in Carol's evidence. I find Carol to be both a credible and reliable witness and I accept her evidence in its entirety.

- [49] The credibility of Carol's evidence is enhanced by the bluntness of the answers she gave and her forthrightness including that she lost no income as a result of the fall and that no one saw her fall. While there were minor inconsistencies between Carol's evidence and her discovery, this is only natural given the passage of time.
- [50] The defendants argued that because Carol's answers regarding her health history at her discovery were inconsistent with some of the notes in her medical records, that she should be considered an unreliable witness. I disagree. I would be more concerned with a witness' reliability if they had a perfect, and rehearsed, recollection of every detail. Minor inconsistencies over the course of several years are not sufficient to exclude a witness' evidence. It is natural for memories to fade and there is no expectation that Carol should recall every minor ailment that caused her to visit a doctor. Carol was consistent in how she fell and her recollection of the events at issue in this proceeding.
- [51] Much of the evidence submitted by the defendants was not relevant to the issues in this action and was argumentative and speculative instead of factual. The defendants accused Carol of fabricating evidence, bringing a frivolous and fraudulent lawsuit, tampering with the back staircase, and retaliating against them for their eviction of Melanie. They also made several accusations against Melanie regarding events related to her tenancy but unrelated to the fall or the staircase. There was simply no evidence to support any of these accusations and speculations made by the defendants.
- [52] While the defendants may be upset about the claims made by Carol, the fact is that the evidence establishes that Carol fell on the back staircase of the Property and did fracture her elbow. There is no evidence before me to cause me to doubt this.
- [53] Carol claims non-pecuniary general damages. Based on the evidence before me, including the evidence of Carol, Dr. Jasey, and Carol's medical records, I conclude that Carol suffered the following injuries as a result of the fall: avulsion fracture of radial head of her left elbow (dominant arm and superimposed upon pre-existing shoulder injury affecting use/functionality of left upper extremity); ulnar nerve subluxation/ulnar neuropathy ("probably" requiring future surgery under general anesthesia); recommended ongoing physiotherapy; potential post-traumatic elbow arthritis (potentially requiring yet further surgeries); and continuing restrictions on use of left arm/elbow. In my view, having regard to all the circumstances of this case, a reasonable assessment of Carol's non-pecuniary general damages is \$85,000.00.
- [54] Carol also seeks \$2,500.00 for past housekeeping/home maintenance, being the unpaid assistance that she received from her daughter and granddaughters, and \$4,800.00 for the future costs over two years. In my view, these amounts are reasonable and shall be awarded.

- [55] In my view, Carol is also entitled to her past and future physiotherapy costs. The defendants shall pay the outstanding invoice from the Care Institute in the amount of \$1,689.93. The evidence of Dr. Jasey establishes that Carol will require future physiotherapy. In my view, \$4,050.00 is a reasonable assessment for future physiotherapy costs for which the defendants shall be responsible.
- [56] There is also an OHIP subrogated claim in the amount of \$1,524.64 that the defendants shall be responsible for.

Causation

- [57] The test for establishing causation is the “but for” test. Carol must show, on a balance of probabilities, that “but for” Yuping’s negligence, Carol would not have suffered the loss. A robust and pragmatic approach to determining causation must be taken. It is sufficient if Yuping’s negligence was a cause, but not the only cause, of Carol’s injuries: *Clements v. Clements*, 2012 SCC 32, [2012] 2 S.C.R. 181, at paras. 6, 8, 9, and 46; *Athey v. Leonati*, [1996] 3 S.C.R. 458, 140 D.L.R. (4th) 235, at paras. 19, 34-35. I have no hesitation finding, based on both Carol’s and Dr. Jasey’s evidence, that the fall on the back staircase was the cause of Carol’s elbow injury. The defendants did not adduce any expert medical evidence on the issue of causation to contradict this. I find that this fall occurred due to the poor condition of the staircase and/or the lack of lighting above the staircase. These conditions are wholly attributable to Yuping’s negligence and lack of proper maintenance of the staircase.
- [58] There is no evidence to support a finding that Carol did not exercise sufficient caution when walking down the staircase. In my view, there is no contributory negligence on Carol’s part. Yuping is 100% liable for the damages suffered by Carol because of the fall.

Issue 2: Did Melanie have a duty of care in respect to the maintenance and upkeep of the Property?

- [59] On the third-party claim against Melanie, the evidence does not support the allegation that Melanie had “exclusive control” of the Property as alleged by the defendants. In the factual circumstances of this case, and considering the expert evidence of Mr. Guignon, Melanie as the tenant, had no duty to maintain the staircase, to ensure that it was structurally stable and had the proper fasteners, or that it complied with the City of Windsor Property Standards By-Law requirements. This duty lays solely with the defendants.
- [60] The third-party claim against Melanie is dismissed.

Issue 3: Was the conveyance of the family home from the defendant Yuping to her children fraudulent?

- [61] Considering the evidence before me, including the admissions made by Yuping, I find that the family home was transferred with the intent to defeat, hinder, delay, or defraud Carol from satisfying any judgment that she may obtain in this action. In these circumstances,

this transfer shall be void as against Carol: s. 2 of the *Fraudulent Conveyances Act*, R.S.O. 1990, c. F.29.

- [62] In her evidence at trial, Yuping made several accusations against the lawyer who completed the transfer. That lawyer is not a party to this proceeding and did not provide evidence. Yuping may have a claim against that lawyer or may pursue a complaint against that lawyer at the Law Society of Ontario. I make no comment on the likelihood of success of either. The only issue before me is whether the conveyance of the family home to Yuping's children, who were not defendants at the time, was a proper conveyance. I find that it was not.
- [63] For these reasons, there shall be a declaration that the conveyance of the family home, located municipally at 2798 Mark Avenue in Windsor, Ontario, from Yuping to Helen and Dylan, registered under instrument number CE953804 on July 15, 2020, is void as against the plaintiff.

CONCLUSION

- [64] The defendants are ordered to pay to Carol \$85,000 in non-pecuniary general damages, \$7,300 for housekeeping and home maintenance, \$1,689.93 for past physiotherapy care, \$4,050 for future physiotherapy care, and \$1,524.64 for the OHIP subrogated claim. Pre and post judgment interest shall also be awarded to Carol.
- [65] The third-party claim against Melanie is dismissed.
- [66] There shall also be a declaration that the conveyance of the family home, located municipally at 2798 Mark Avenue in Windsor, Ontario, from Yuping to Helen and Dylan, registered under instrument number CE953804 on July 15, 2020, is void as against the plaintiff.

COSTS

- [67] Given that Carol was entirely successful in her action, she is entitled to her costs. The general principles governing costs are well established:
- (a) Costs are in the court's discretion under s. 131 of the *Courts of Justice Act*, R.S.O. 1990, c. C.43.
 - (b) Rule 57.01(1) of the *Rules of Civil Procedure*, R.R.O. 1990, Reg. 194, provides factors for my consideration in the exercise of my discretion to award fair and reasonable costs.
 - (c) Fairness and reasonableness are the overriding principles that govern costs awards: *Boucher v. Public Accountants Council*, [2004] 71 O.R. (3d) 291 (C.A.).
- [68] Having reviewed the costs outline submitted by the plaintiff, I have no hesitation in awarding the maximum amount of \$50,000, exclusive of H.S.T., permitted in fees under r.

76.12.1 of the *Rules*. This amount is fair and reasonable in all the circumstances of this case, including the hourly rates charged and the time spent. Further, this amount is far below both the total partial and total full indemnity fees identified in the costs outline.

- [69] The disbursements sought by Carol are also reasonable and shall be awarded in the amount of \$22,210.78, inclusive of H.S.T.

Jacqueline A. Horvat
Justice

Released: December 11, 2025

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